

23AHCV00546 23AHCV00546

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-15

Motion: MOOTION TO SEAL EXHIBITS TO DECLARATION OF X. MORROW IN SUPPORT OF PETITION TO VACATE ARBITRATION AWARD

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Case Number: 23AHCV00546 Hearing Date: July 15, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

KENING XU,

Plaintiff(s),

vs.

CHARLES
CHUNHUA HUANG,

Defendant(s).

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CASE NO.: 23AHCv00546

[TENTATIVE]

ORDER RE: MOOTION TO SEAL EXHIBITS TO DECLARATION OF X. MORROW IN
SUPPORT OF PETITION TO VACATE ARBITRATION AWARD

Dept.

3

8:30

a.m.

July 15,

2026

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On January 27, 2026, plaintiff Kening Xu
("Xu") filed a motion to seal certain documents submitted in support of his
motion for vacatur, including Exhibits A, B, C, F, H, I, J, K, L, N, O, P, and
Q to the Declaration of Xinlin Li Morrow ("Morrow Declaration"). The motion was
brought in anticipation of defendant Charles Chunhua Huang's ("Huang")
contention that the materials are confidential and require sealing.

The Court previously identified two
procedural issues with Xu's motion to seal: (1) Xu failed to lodge a complete
and unredacted version of the Morrow Declaration and (2) the redactions were

not narrowly tailored. These issues have since been rectified; a complete and unredacted version of the Morrow Declaration was lodged with the Court and the proposed redactions are appropriately limited to information regarding Xu's PCI shares.

"The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. (CRC 2.550(d).) "An order sealing the record must: (A) Specifically state the facts that support the findings; and (B) Direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file." (CRC 2.550(e).)

On March 16, 2026, Huang filed a declaration to fulfill the requirements of CRC 2.550 and 2.551. Huang argues he has a substantial overriding interest in keeping the financial information of Pasaca Capital, Inc. ("PCI") confidential because PCI is a privately-held company. (Cassidy v. Cal. Bd. of Accountancy (2013) 220 Cal.App.4th 620, 625.) Huang states he wishes to safeguard information in the arbitration records lodged in support of the motion to vacate, specifically, the amount of shares purchased by Xu, the price at which he purchased those shares, and the price at which he later sold them. (Huang Decl., ¶¶ 3-6.)

Therefore, the Court makes the following findings: (1) there exists an overriding interest that overcomes the right of public access to this PCI's confidential shareholder information in that PCI is a privately-held company whose financial information is confidential and the public interest in this information is low because it was not specifically relied on in reaching the merits of the motion to vacate arbitration.; (2) the overriding interest of PCI's right of privacy and confidentiality in its financial information supports sealing this portion of the record, (3) the right of privacy and confidentiality will be prejudiced if the documents are not sealed, (4) the sealing order is narrowly tailored, and (5) there are no less restrictive means to protect PCI's confidential financial information.

Accordingly, the motion to seal page 5,
lines 2-3 and 7-8 of the Morrow Declaration, as well as portions of Exhibits C,
I, J, K, L, M, N, O, Q and S of the Morrow Declaration is GRANTED.

Dated
this 15th
day of July 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this
tentative must send an email to the Court at indicating
intention to submit on the tentative as directed by the instructions provided
on the court website at www.lacourt.org. Please be advised that if you submit
on the tentative and elect not to appear at the hearing, the opposing party may
nevertheless appear at the hearing and argue the matter. Unless you receive a
submission from all other parties in the matter, you should assume that others
might appear at the hearing to argue. If the Court does not receive emails from
the parties indicating submission on this tentative ruling and there are no
appearances at the hearing, the Court may, at its discretion, adopt the
tentative as the final order or place the motion off calendar.